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No. 00-9280

In The

Supreme Court of the United States

WILLIAM ARTHUR KELLY,

Petitioner,

v.

STATE OF SOUTH CAROLINA,

Respondent.

On Writ Of Certiorari To The Supreme Court Of South Carolina

REPLY BRIEF FOR PETITIONER

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ARGUMENT IN REPLY

1. The state's proposed standard would effectively overrule *Simmons*.

South Carolina concedes that the state's evidence alone can, under some circumstances, place future dangerousness "at issue" under *Simmons v. South Carolina*, 512 U.S. 154 (1994). Brief for Respondent at 15, 26. It further acknowledges that the prosecution's evidence of petitioner's violent character and behavior was more than sufficient to prove his future dangerousness beyond a reasonable doubt, had South Carolina law permitted or required the jury to make such an explicit finding. Brief for Respondent at 18-25. Nevertheless, the state insists that its evidence did not place petitioner's future dangerousness at issue because he has not shown that the jury could have drawn *"no other possible inference* but future dangerousness to society" from the state's proof. *Id.* at 27 (emphasis in original).

This "dangerousness-only" standard, if adopted, would mean that most evidence of future dangerousness would fail to trigger the *Simmons* rule, since such evidence is usually also relevant to the separate issue of the defendant's moral desert. Its practical effect would be to allow prosecutors to inundate capital sentencing juries with evidence of defendants' likely future dangerousness, while evading *Simmons* by pointing out that the evidence *also* had retributive significance. Respondent cites no state or federal case adopting this highly restrictive standard, and its sole motivation for proposing it appears to

be that under any less grudging interpretation of *Simmons*, the state court's judgment in this case would be impossible to defend.

2. Other states do not rely on a narrow reading of *Simmons*.

South Carolina lists state court decisions that "have identified the prosecutor's express argument of future dangerousness as a necessary trigger for applicability of the [*Simmons*] rule." Brief for Respondent at 20-21, n. 4. To the extent that this list is meant to imply that any appreciable number of other states share South Carolina's reluctance to inform juries about parole ineligibility, the implication is false. Of the nine states represented, all but Pennsylvania now require trial courts to inform capital sentencing juries of the unavailability of parole in every case, regardless of *Simmons'* dangerousness requirement,[1]

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[1] Cal. Penal Code Ann. § 190.3 (West 2001) (jury is given life without possibility of parole as a possible verdict); La. Code Crim. Proc. Ann., Art. 905.6 (West 1997) (same); N.J. Stat. Ann. § 2C:11-3(f) (West Supp. 2000) (jury must be fully instructed on non-capital sentencing alternatives, including parole restrictions); Ohio Rev. Code Ann. § 2929.03 (1999) (jury is given life without possibility of parole as a possible verdict); *State v. Moeller*, 616 N.W.2d 424 (S.D. 2000) (jury given possible sentencing verdict of "life imprisonment without parole"); *People v. Gacho*, 522 N.E.2d 1146, 1166 (Ill. 1988) (instruction required where defendant faces mandatory life without parole sentence if not sentenced to death); Tenn. Code Ann. § 39-13-204(f) (Supp. 2000) (jury is given life without possibility of parole as a possible verdict); N.C. Gen. Stat. § 15A-2002 (2001) ("The judge shall instruct the jury . . . that a sentence of life imprisonment means a sentence of life without parole."); *cf.*

and in most of the cases cited, the jury was so informed, either by instruction or the sentencing verdict itself. Whatever references to *Simmons'* future dangerousness requirement may be found in these cases, the salient fact to be drawn from the practices of American state courts is that South Carolina now stands almost alone in refusing to enlighten capital sentencing juries concerning the meaning of their non-capital sentencing option.

3. The prosecutor invoked both retribution and future dangerousness.

Turning to the prosecutor's argument, the state labors to show that its primary "focus" was retribution, and that the prosecutor did not "expressly raise" dangerousness. Brief for Respondent at 37-44. But this claim, even if it were true, depends on the state's additional contention that future dangerousness can only be put in issue by evidence or argument *that is subject to no other possible interpretation* but that of the defendant's future dangerousness. That this restriction would effectively overrule *Simmons* is illustrated by the facts of this case, in which the state interprets the prosecutor's claim that petitioner was "dangerous" and "more frightening than a serial killer" as an appeal for retribution. Be that as it may, such argument also implicitly invited the jury to protect society against petitioner. Accordingly, *Simmons* entitled him to show that this goal could be achieved by life imprisonment without parole as well as by death.

Commonwealth v. Clark, 710 A.2d 31, 35-37 (Pa. 1998) (upholding denial of *Simmons* instruction).

4. Defense counsel's argument did not remove the need for a no-parole instruction.

The state asserts that defense counsel's seemingly hyperbolic claim that petitioner would "never see the light of day again" if the jury sentenced him to life imprisonment was the equivalent of a no-parole instruction. In *Shafer v. South Carolina*, 532 U.S. 36, 121 S.Ct. 1263 (2001), this Court squarely rejected the same argument, although there defense counsel's argument was both more emphatic and more specific, 121 S.Ct. at 1273 (" '[h]e will die in prison' "), and although Shafer's jury was instructed (as petitioner's was not) that "life imprisonment means until the death of the offender." *Id.*

Nor does the failure of petitioner's jury to request further instructions about parole distinguish this case from *Simmons*. Brief for Respondent at 47. Just as a jury's question does not convert a constitutional instruction into an unconstitutional one, *Weeks v. Angelone*, 528 U.S. 225, 234-37 (2000), so the absence of a jury request for further instruction does not cure a constitutionally inadequate charge.

5. South Carolina may soon abandon its resistance to the *Simmons* rule.

Although the state suggests that its reluctance to inform sentencing juries of the nonexistence of parole reflects a determination to "remain true" to longstanding state law, Brief for Respondent at 49, South Carolina's judgment on this issue is by no means settled. On May 16, 2001, the South Carolina House of Representatives

approved legislation to require trial judges to read the no-parole provision of S.C. Code § 16-3-20(A) (Cum. Supp. 2000) to capital sentencing juries upon request of either side, and the measure is now pending in the state Senate. H.R. 3819, 113th Leg., 1st Sess. (S.C.). If this legislation becomes law, as now appears likely, South Carolina will finally join the overwhelming majority of death penalty jurisdictions in which sentencing juries are informed of the unavailability of parole for capital murderers whose lives are spared.[2]

6. South Carolina's arguments do not explain its unwillingness to comply with *Simmons*.

The state's brief fills 50 pages, but sheds no light on the most puzzling aspect of South Carolina's dogged resistance to *Simmons*. Why have South Carolina prosecutors gone to so much trouble to avoid letting juries know how the state's legislature has defined life imprisonment? For if (as the state insists) the prosecution's evidence and argument did not lead the jury to assess petitioner's likely future behavior, a *Simmons* instruction would presumably not have affected the jury's deliberations, and the state would have no reason to care whether the instruction was given or not.

In truth, the determination with which South Carolina continues to probe for loopholes in *Simmons* suggests

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[2] Of course, such a change would come too late for defendants like the petitioners in this case and in *Shafer*, *supra*, whose trials were conducted under current South Carolina law, and who must therefore depend on the due process rule of *Simmons* itself.

that it actually agrees with petitioner's view of the realities of capital sentencing. When a jury convicts a defendant of a death-eligible murder, very little further prompting is needed to focus the jury's attention on the danger that defendant may pose in the future if he is allowed to live. And once a sentencing jury focuses on that issue, a death sentence is much more likely if the jury is kept in the dark about its power to protect society by means of a true life imprisonment sentence. The state has no valid interest in increasing the number of death sentences by preserving and exploiting this "false dilemma," *Simmons, supra,* 512 U.S. at 171, and the Court should reverse petitioner's death sentence in such a way as to ensure that this practice does not continue.

CONCLUSION

For the foregoing reasons and those set forth in the Brief for Petitioner, the judgment of the South Carolina Supreme Court should be reversed.

Respectfully submitted,

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